

25STCV19206 25STCV19206

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-10

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Case Number: 25STCV19206 Hearing Date: September 10, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

BP HOLDINGS RHO, LLC

vs.

ANN SUNG, et al.

Case

No.: 25STCV19206

Hearing Date: September 10, 2026

Plaintiff's

motion for summary adjudication of the first cause of action is CONTINUED to
November 3, 2026, at 8:30 a.m.

On 7/1/2025,

Plaintiff BP Holdings Rho, LLC (Plaintiff) filed suit against Ann Sung, Yichun
Kuo, Steve Su, and Sinan Duan (collectively, Defendants) alleging: (1) breach
of contract; and (2) specific performance.

On

5/22/2026, Plaintiff moved for summary adjudication of the first cause of action against Defendants.

Discussion

Plaintiff

moves for summary adjudication of the first cause of action against Defendants, arguing that:

There is no

genuine dispute regarding what happened in this case. Lender lent money to Borrower, secured by certain real property. Borrower stopped making its payments on the loan, allowed mechanics liens to be recorded against the underlying property and failed to pay property taxes. Accordingly, Borrower was in default under the various loan documents. The default by Borrower triggered Defendants' obligations as guarantors on the loan, and Defendants have no excuse for non-payment or defense. Plaintiff respectfully submits that a simple application of basic legal principles to the undisputed facts leads to the conclusion that Plaintiff is entitled to judgment in its favor as a matter of law.

(Motion,

1: 9-16.)

In

opposition, Defendants request a continuance on the grounds that they have not had a meaningful opportunity to conduct the discovery necessary to fully address the issues raised in the motion. For example, Defendant Su's current counsel, Tony M. Lu, argues:

He did not

substitute into this matter until May 7, 2026. As soon as he came into this case, he was already dealing with two rounds of Motion for Compliance against Defendant. During this interval, Plaintiff filed and served its Motion for Summary Judgment. As a result, counsel has had only a limited period to review the case record, investigate the underlying facts, identify relevant witnesses and documents, and conduct discovery directed to the factual issues raised in Plaintiff's Motion. In addition, because there are multiple related cases

bearing on the issues presented in this Motion, counsel must also review those matters to fully understand the scope and context of the claims and defenses.

(Opp.,
3: 10-18.)

Pro

per Defendant argues that she has been prejudiced as her counsel substituted out over her objection on 5/12/2026.

To

avoid prejudice, the Court will grant a continuance as there has been no substantive discovery date, including depositions of any of the parties involved. However, the continuance granted will only be brief, as Defendants' assertions that "additional discovery remains necessary" are not well supported with material argument.

Based

on the foregoing, Plaintiff's motion for summary adjudication of the first cause of action is continued.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please contact the court clerk at (213)
633-0517.